REPORTABLE (16)

ABIGAIL NYAROTA
v
(1) MUTARE BOARD AND PAPER MILLS LIMITED (2) THE MINING COMMISSIONER, MANICALAND PROVINCE N.O (3) THE SECRETARY FOR MINES AND MINING DEVELOPMENT N.O (4) MINISTER OF MINES AND MINING DEVELOPMENT N.O (5) THE ENVIRONMENTAL MANAGEMENT AGENCY

SUPREME COURT OF ZIMBABWE
UCHENA JA, MAKONI JA & MWAYERA JA
HARARE: 11 JULY 2025

E. Mubaiwa, for the appellant

M. Muzaza, for the first respondent

P. Garwe with *Ms B.T. Mandima,* for the second to fourth respondents

No appearance for the fifth respondent

MWAYERA JA:

INTRODUCTION

1. This is an appeal against the judgment of the High Court ("the court *a quo*"), wherein it granted a *declaratur* and consequential relief in favour of the first respondent by nullifying the registration of the appellant's mining certificate. After hearing arguments from both parties in this appeal, this Court dismissed the appeal with costs and indicated that full reasons for the judgment would be availed in due course. These are they.

FACTUAL BACKGROUND

2. The appellant is a female adult with the capacity to sue and be sued. The first respondent is a company duly registered in terms of the laws of Zimbabwe. The second respondent is the Mining Commissioner, Manicaland Province, cited in his official capacity as the authority responsible for issuing mining licenses and permits. The third respondent is the Secretary for Mines and Mining Development, cited in his official capacity. The fourth respondent is the Minister of Mines and Mining Development, cited herein in his official capacity. The fifth respondent, the Environmental Management Agency, is a body corporate that is established in terms of section 9 of the Environmental Management Act [*Chapter 20:27*] (" EMA").

3. The first respondent instituted proceedings in the court *a quo* for a *declaratur* that would render the mining permit granted to the appellant by the second respondent null and void. During the proceedings in the court *a quo*, the first respondent adduced evidence that it was in the business of timber production, owning various estates in the Manicaland Province, where it plants and grows pine trees for timber sawing and selling. It stated that it owned an estate plantation commonly known as Nyagari Estate ("the estate"), which had various blocks with pine trees of varying ages. The first respondent averred that the appellant had taken occupation of a portion of the estate and had started mining operations on the strength of a certificate of registration of a mining location number G5207 dated 4 June 2019. It was alleged by the first respondent that the mining certificate had been issued to the appellant by the second respondent.
4. Further, the first respondent averred that when the appellant took occupation of the estate, she neither sought the first respondent's consent nor consulted it for the compilation of an environmental impact assessment report. The first respondent stated that the appellant disturbed its business as she made deep shaft excavations on the land, thereby posing a high

fire risk to the pine trees. It was further contended by the first respondent that the appellant was operating without an environmental impact assessment certificate, which was a condition precedent for any prospecting, mining, and ore processing. Additionally, the first respondent argued that the issuance of the certificate of registration was irregular at law and therefore a nullity as it did not adhere to the provisions of s 97 of the EMA which provides for the issuance of an environmental impact assessment certificate before the certificate of registration.

5. The second to fourth respondents opposed the application. They stated that the mining location had been registered in terms of the Mines and Minerals Act [*Chapter 21:05*], ("the Act") which did not stipulate that an environmental impact assessment certificate was a prerequisite for the registration of a mining location. It was also advanced by the second to fourth respondents that the environmental impact assessment certificate, however, had to be obtained before any mining operations could be conducted. They contended that the certificate of registration had been issued procedurally in line with the Mines and Minerals Act.

6. The appellant also opposed to the application. She argued that her mining claims were located approximately 500-800 metres away from the land under cultivation, hence did not pose a risk to the trees. It was further stated by the appellant that the first respondent's allegation that she had not sought its consent had no merit in terms of s 31(1)(a)(vi) of the Act. The appellant also claimed that she had carried out mining activities on the land for a cumulative period of twelve years; hence, the matter had prescribed, as the first respondent failed to institute proceedings within two years of the date of registration of the mining claim. The appellant also claimed that she was not carrying out any harmful mining activities as she had never made deep shaft excavations on the land, which would cause environmental degradation.

Additionally, she contended that the matter was *lis pendens* as the first respondent had already approached the second respondent for the cancellation of her mining certificate.

7. Further, the appellant argued that the first respondent had failed to attach any evidence showing the extent of the damage the appellant had caused to the environment, making the allegations bare and baseless. She reiterated that she carried out safe mining practices and that in the eleven years she had mined at the estate, no fire had broken out. It was averred by the appellant that the first respondent had only instituted proceedings against her because it was interested in the mining claims and was sourcing business partners who could invest and mine on the claims. The appellant also claimed that she had applied for an environmental impact assessment certificate; thus, her certificate of registration could not be cancelled as she was regularizing the process. She further argued that s 97(2) of the EMA prescribed the repercussions for contravening s 97(1), which excluded the cancellation certificate of registration.

8. In determining the case, the court *a quo* held that the provisions of s 58 of the Act did not apply in the instant matter. It also held that the case was not *lis pendens* as the causes of action in the matter before the second respondent and the present one were different. The court *a quo* found that the appellant had contravened s 131 of the Act by not seeking the first respondent's consent before commencing mining activities. In its *ratio*, the court *a quo* also held that an environmental impact assessment certificate was a pre-requisite to the issuance of a certificate of registration. Accordingly, the court *a quo* granted the *declaratur* and consequential relief in favour of the first respondent.

PROCEEDINGS BEFORE THIS COURT

9. Dissatisfied, the appellant appealed to this Court under the following grounds of appeal:

GROUNDS OF APPEAL

1. The court *a quo* erred in finding that the relief of cancellation of appellant's registered mining title was immune from the provisions of s 58 of the Mines and Minerals Act and so further misdirected itself in not finding that, on the facts before it, such relief was now time barred.

2. The court *a quo* erred in coming to the conclusion that the relief sought by first respondent was not similar to that which it is seeking before second respondent and consequently further erred in finding that the special plea of *ad lis pendens* was not established.

3. Having found that the matter was not *ad lis alibi pendens* on account of its reliance on the provisions of the Environmental Management Act, the court *a quo* erred in then finding appellant's registered title invalid on account of the lack of first respondent's consent, which is the very basis of the parallel proceedings pending before second respondent.

4. The court *a quo* erred in all the circumstances in coming to the conclusion that the appellant's mining title is unlawful whether for non-compliance with the Environmental Management Act or the Mines and Minerals Act.

5. The court *a quo* erred in not considering or determining an issue which was alive before it, namely whether or not the case was one which called for the exercise of its discretion in terms of s 14 of the High Court Act and so further erred in not providing reasons for its exercise of such discretion.

RELIEF SOUGHT

(1) The appeal succeeds with costs.

(2) The judgment of the High Court at Mutare in case number HCMTC 132/24 be and is hereby set aside and substituted with the following:

"The application be and is hereby dismissed with costs."

Take further notice that in the alternative, appellant seeks the following relief:

(1) The appeal succeeds with costs.

(2) The judgment of the High Court at Mutare in case number HCMTC 132/24 be and is hereby set aside.

(3) The matter is hereby remitted to the High Court at Mutare for a hearing *de novo* before a different judge.

ISSUES FOR DETERMINATION

(1). Whether or not the court *a quo* erred in law by finding that the appellant's mining certificate was invalid and holding that s 58 of the Mines and Minerals Act did not apply.

(2) Whether or not the court *a quo* erred at law by not determining whether the case called for it to exercise its discretion in terms of s 14 of the High Court Act.

SUBMISSIONS BEFORE THIS COURT

(10) At the hearing of the appeal, Mr *Mubaiwa*, counsel for the appellant abandoned the second and third grounds of appeal. In that vein, he motivated the appeal in terms of the first, fourth and fifth grounds of appeal. He submitted that under the first ground of appeal, the court *a quo* had erred by not finding that the first respondent was time barred by s 58 of the Act from raising the complaint that the appellant had obtained the certificate of registration illegally. Upon enquiry from the Court, counsel for the appellant highlighted that he was aware of the judgment in *Serepta Resources (Private) Limited* v *Ariston Holdings (Private) Limited & Ors* SC 40/25, but was of the view that the said judgment did not take into account the import

of s 58 of the Act. Further, he argued that s 97 of the EMA provided that the environmental impact assessment certificate was only necessary where one wanted to implement mining activities and not where one wanted to register a mining title. In relation to the fifth ground of appeal, he submitted that the court *a quo* erred at law by not exercising its discretion to deal with issues of mootness, public policy and alternative remedies.

(11) *Per contra*, Mr *Muzaza*, counsel for the first respondent, submitted that the *Serepta Resources* case (*supra*) disposed of the issues *in casu*. He stated that s 97 of the EMA prevented uncontrolled mining activities. Further, he also argued that s 58 of the Act was specific on the grounds that had to be raised within two years to challenge the mining title. He contended that s 58 Act was also restricted to pegging and did not apply to mineral mining or ore processing. With regard to the fifth ground of appeal, counsel for the first respondent submitted that the court *a quo* had exercised its discretion as was highlighted on p 114 of the record.

(12) Mr *Garwe* , counsel for the second to fourth respondents, admitted that in terms of the law, an environmental impact assessment certificate was a pre-requisite to the issuance of a certificate of registration. However, he stated that this was not the position on the ground as the certificate of registration was awarded first to deal with the issue of the mining location's coordinates. Upon an enquiry from the Court, he argued that one could not access an environmental impact assessment certificate without the coordinates of the mining location. Hence, the need for the certificate of registration before the environmental impact assessment certificate albeit contrary to the law.

On rebuttal, counsel for the appellant contended that s 97 of the EMA was restricted to implementation and not the obtaining of a certificate of registration. In relation to the *Serepta Resources* case, he submitted that the position taken by the Court was not correct and that the Court had the power to depart from its decisions.

APPLICATION OF THE LAW TO THE FACTS

1. **Whether or not the court *a quo* erred in law by finding that the appellant's mining certificate was unlawfully obtained and holding that section 58 of the Mines and Minerals Act did not apply in the circumstances.**

13. The appellant in her first ground of appeal avers that the court *a quo* erred in finding that the relief of cancellation of appellant's registered mining title was immune from the provisions of s 58 of the Mines and Minerals Act and also further misdirected itself in not finding that, on the facts before it, such relief was now time barred. In advancing his argument, Mr *Mubaiwa* submitted that he was aware of the judgment in the *Serepta* case, and in his words, the judgment did not take into account the import of s 58 of the Act. Counsel further argued that in terms of s 97 of the EMA, the environmental impact assessment certificate was only necessary where one wanted to implement mining activities and not where one wanted to register a mining title.

14. This Court agrees with Mr *Muzaza*, counsel for the first respondent that the *Serepta Resources* case (*supra*) disposes of the issues *in casu*. It is apparent that s 97 of the EMA seeks to prevent uncontrolled mining activities while s 58 of the Act is specific on the grounds that have to be raised within two years to challenge the mining title. Section 58 of the Act is also restricted to pegging and does not apply to mineral mining or ore processing which was the prevailing situation *in casu.*

15. In any event, in terms of the law, an environmental impact assessment certificate is a pre-requisite to the issuance of a certificate of registration. In this case what was obtaining on the ground, that is, the issuance of a certificate of registration before the environmental impact assessment certificate is clearly contrary to the law and as such a nullity. Mr *Garwe*, counsel for the second to fourth respondents' submission that the position on the ground was that one could not obtain an environmental impact assessment certificate without the co-ordinates to the mining location did not sanitize the unlawful acquisition of the mining certificate of registration prior to acquiring the environmental impact assessment certificate.

16. Before delving further into the intricacies of this matter, it is important to point out that Mr *Garwe's* argument about what happens on the ground is not plausible. It is a well-known principle that the law is law, whether good or bad. It is not in dispute that when a law is codified, the courts do not look at what is practicable, but rather what the law says and interpret it as it is. In fact despite articulating the correct legal position that an environment impact assessment certificate had to be obtained first. Mr *Garwe* sought to justify the anomalous situation by stressing that what happened was more practical. This court will not be detained by the submission which seeks to justify noncompliance with the law.

17. It is germane to quote the provisions in questions so as to analyze them properly. Section 58 of the Mines and Minerals Act provides as follows:

> "When a mining location or a secondary reef in a mining location has been registered for a period of two years, it shall not be competent for any person to dispute the title in respect of such location or reef on the ground that the pegging of such location or reef was invalid or illegal or that provisions of this Act were not complied with prior to the issue of the certificate of registration."

18. Section 97 of the Environmental Management Act provides as follows:

(1) The projects listed in the First schedule are projects which must not be implemented unless in each case, subject to this Part-

(a) The Director-General has issued a certificate in respect of the project in terms of section one hundred, following the submission of an environmental impact assessment report in terms of section ninety-nine; and

(b) The certificate remains valid; and

(c) Any conditions imposed by the Director General in regard to the issue of the certificate are complied with.

(5) A licensing authority shall not issue a licence under any enactment with respect to a project referred to in subsection (1) unless the Director-General has issued a certificate in respect of the project in terms of section one hundred or the project has been deemed to have been approved in terms of subsection (1) of section one hundred.

19. It is an established principle that the words to a statute must be given their ordinary and grammatical meaning, unless doing so leads to an absurdity. A simple reading of the First Schedule, alluded to in s 97, shows that an environmental impact assessment certificate is required at both the prospecting and mining stages. This means that one ought to have an environmental impact assessment certificate before beginning any mining activity. It is the appellant's argument that s 58 of the Mines and Minerals Act impedes the first respondent from challenging its mining title as two years have lapsed. The import of s 58 of the Act as read together with s 97 of EMA was lucidly explained by this Court in *Serepta Resources (Private) Limited* v *Ariston Holdings (Private) Limited & Ors* (*Supra*).

20. In *Serepta (supra)* MATHONSI JA, on pp 12-15 remarked that:

> "Although the provisions of the two statutes governing mining activities appear to be fairly straight forward, let the point be made at this early stage that it is settled that the language of every enactment must be construed with every other statute which it does not expressly modify or repeal. The law does not allow the revocation or alteration of a statute by construction when the words may have their proper operation without it.

However, if, for some reason, the provisions of a later statute are so inconsistent with or repugnant to those of an earlier one, then the two cannot exist together. The earlier statute will stand impliedly repealed by the later statute. See the remarks of WATERMEYER CJ in *Kent N.O* v *South African Railways & Anor* 1946 AD 396 which were quoted with approval by this Court in *Tamanikwa* & *Ors* v *Zimdef* 2013 (2) ZLR 46 (S).

In the present case, the earlier statute is the Mines and Minerals Act, having come into effect almost 4 decades prior to the Environment Management Act, which only became law in 2003.

From the foregoing requirements for the registration, there is no mention of an EIA certificate. But the matter does not end there because the Environmental Management Act, among a litany of other statutes, also regulates mining activities. It is a statute that was enacted to ensure, as already said, that mining operations adhere to environmental protection standards and promote sustainable mining practices. It provides in section 3 that:

> '(1) Except where it is expressly provided to the contrary, this Act shall be construed **as being in addition to** and not in substitution for any other law which is not in conflict or inconsistent with this Act.
>
> (2) **If any other law is in conflict with this Act, this Act shall prevail**.' (My emphasis).

This provision is fairly simple and straight forward and by virtue of the basic cannons of statutory interpretation, it must be given its grammatical and ordinary meaning, as such meaning does not lead to an absurdity or repugnancy or inconsistency with the rest of the provisions. See *Chegutu Municipality* v *Manyara* 1996 (1) ZLR 262(S) at 264 D-E*; Madoda* v *Tanganda Tea Company Ltd* 1999 (1) ZLR 374 (S), *S* v *Nottingham Estates* (*Pvt) Ltd* 1995 (1) ZLR 253 (S).

The grammatical and ordinary meaning of section 3 is that the provisions of the Environmental Management Act are in addition to other existing laws regulating registration of mining claims including s 45 of the Mines and Minerals Act. It must follow therefore that the provisions of s 97 and indeed s 100 of the former Act have added more requirements for registration to those listed in s 45 of the latter Act.

In terms of s 97 of the Environmental Management Act…

What should be contained in an environmental impact assessment report is listed in s 99. Generally it is concerned with the question whether the environment is likely to be affected by the project. Considerations of the report and an issuance of the certificate itself are provided for in s 100. Projects requiring an environmental impact assessment certificate are listed in the First Schedule and include item 7 which reads:

> "**Mining and quarrying**-
>
> (a) Mineral prospecting;
> (b) Mineral Mining;

(c) Ore processing and concentrating;
(d) Quarrying."

21. Further, on p 18, the Court held that:

> "Considering that the Environmental Management Act, was introduced several years after the Mines and Minerals Act was operational, by dint of the principle of *lex posterior derogate priori*, the former Act is deemed to be the superior one on the basis of implied repeal. The legislature is presumed to have had knowledge of the limitations of the mining legislation and deliberately added to it. See *Tamanikwa supra.*
>
> In any event, there is no conflict at all in the two pieces of legislation which must simply be read together in a complimentary manner. See *Heavy Transport & Plant Hire (Pty) Limited* & *Ors, supra.* When one adopts that approach, it becomes clear that, to the list of requirements for registration set out in s 45 of the Mines and Minerals Act, must be added the requirement for an environmental impact assessment certificate provided for in s 97 as read with the First Schedule of the Environmental Management Act. **It makes the issuance of that certificate a pre- requisite to the registration of a mining claim**." (My emphasis)

22. The *Serepta Resources* case mentioned above clearly enunciates that the Act and EMA complement each other. However, the Environmental Management Act takes precedence over the Mines and Minerals Act where there is perceived conflict. The legislature knew of the limitations in the Mines and Minerals Act and went a step further, adding more requirements in the EMA. Therefore, s 97 of the Environmental Management Act ought to be complied with. In these present circumstances, s 58 of the Act could not be legally resorted to for purposes of evading a statute bound precondition of first obtaining an EIA certificate before registration of a mining claim.

23. Under the fourth ground of appeal, the appellant argues that the court *a quo* erred in all circumstances in nullifying the appellant's certificate of registration for non-compliance with the EMA. The argument by Mr *Mubaiwa* that the *Serepta Resources* case did not take into consideration s 58 of the Mines and Minerals Act has no basis. It is apparent from the *Serepta*

Resources case that where there is a contradiction between the Act and the EMA, what takes precedence is the EMA. The EMA provides that an environmental impact assessment certificate is a pre-requisite to the registration of a mining claim. Without this certificate, there is basically no mining licence claim to talk about. In effect, the appellant's mining claim was never registered as there was no environmental impact assessment certificate. Therefore, the provisions of s 58 are not applicable in this case.

24. This principle was dealt with in the case of *Sandawana Mines (Private) Limited* v *The Mining Commissioner-Midlands Province & Ors* HH 539-23, at pp 13-14, wherein the court held that:

> "An EIAC issued by the fourth respondent is a condition precedent to any mineral prospecting, mineral mining, ore processing and concentrating among other kindred mining operations… it is wrong for anyone to assume that the EIAC is not a *sine qua non* for the grant of a prospecting licence or indeed a mining licence. Section 97 puts that beyond doubt. It is not possible for anyone to acquire mining title without first procuring an EIAC from the fourth respondent. It must be clear to all officials charged with the administration of the Act that whether they deem it tedious or not, the law requires the provisions of the Act to be read together with the provisions of the EMA Act which speak to mining operations. Section 3 of the EMA Act is particularly instructive. It states that:
>
> Section 3 of the EMA Act which provides as follows:
>
> > '(1) Except where it is expressly provided to the contrary, this Act shall be construed as being in addition to and not in substitution for any other law which is not in conflict or inconsistent with this Act.
> >
> > (2) If any other law is in conflict with this Act, this Act shall prevail.'
>
> The first, second and third respondents were obligated by law to observe this requirement before they purportedly issued out a prospecting licence and registration certificate to the fifth respondent."

25. This position was also cemented in the *Serepta Resources* case (*supra*). The court *a quo* therefore correctly found that the appellant's certificate of registration was null and void due to a lack of compliance with the Environmental Management Act. In light of the foregoing, it

is therefore apparent that the first and fourth grounds of appeal lack merit. Their dismissal is therefore warranted.

Whether or not the court *a quo* erred at law by not determining whether the case called for it to exercise its discretion in terms of s 14 of the High Court Act.

26. The appellant in her fifth ground of appeal avers that the court a quo erred in not considering or determining an issue which was live before it. The issue in question was whether or not the case was one which called for the exercise of its discretion in terms of s 14 of the High Court Act. The appellant avers that the court further erred in not providing reasons for its exercise of such discretion. Counsel for the appellant made the submission that the court *a quo* had erred at law by not exercising its discretion to deal with issues of mootness, public policy and alternative remedies. In response, counsel for the first respondent submitted that the court *a quo* had exercised its discretion as was highlighted on p 114 of the record.

27. Section 14 of the High Court Act provides as follows:

> "The High Court may, in its discretion, at the instance of any interested person, inquire into and determine any existing, future or contingent right or obligation, notwithstanding that such person cannot claim any relief consequential upon such determination."

28. The section, thus provides that the High Court may exercise its discretion where one has shown that they have a substantial interest in the matter. The appellant contends that the court, in addition to inquiring whether one has a substantial interest in the matter, must also inquire whether the matter is one for which it can exercise its discretion in favour of the applicant.

29. From a reading of the record, it is clear that the appellant did not raise the question of mootness in the court *a quo*. It is trite law that an appellate court cannot deal with new issues; it can only deal with issues raised in the lower court. This was laid out in the case of *Bakari* v *Total Zimbabwe (Pvt) Ltd* SC 21/19 at p 19 as follows:

> "The issue of novation raised by the appellant in a bid to evade liability cannot stand because the issue was never raised in the court *a quo*. The Supreme Court, as an appellate court, save in exceptional circumstance, only deals with matters that have been dealt with by the court *a quo*. Its appellate powers do not stretch to dealing with matters as a court of first instance."

30. Similar sentiments were shared by the Court in *Darangwa* v *Kadungure & Ors* SC 126/21 at p 11 as follows:

> "This Court has repeatedly discouraged litigants from treating it as a court of first instance because it is not. A litigant who has not made a case in the court below will not be allowed to smuggle such case in on appeal. As stated in Kearns v Walter Enterprises SC160/90, the court will not set a precedent for litigants to treat the Supreme Court as a second court of first instance where issues can be tried afresh."

31. As the issue was not raised in the court *a quo*, this Court cannot deal with it, as this would render this Court a court of first instance, which it is not.

32. Further, the appellant argues that the matter had become moot because it had already been awarded the certificate of registration and begun mining operations. However, this is not so. In the case of *Serepta Resources (supra*), despite mining operations having begun and the appellant having obtained the environmental impact assessment certificate after the certificate of registration, the Court still found that the environmental impact assessment certificate was a pre-requisite to a certificate of registration, thus the certificates of registration obtained before the environmental impact assessment certificate were null and void. On that basis, the fifth ground of appeal lacks merit and it ought to be dismissed.

DISPOSITION

33. It is the settled position of the law that even though the EMA and the Mines and Minerals Act are to be read in tandem, where there is a contradiction, EMA takes precedence. In this case, it was a pre-requisite for the appellant to have the environmental impact assessment certificate first before her mining claim could be registered. The second respondent erred in registering the mining claims before the environment impact assessment certificate was issued. The second to fourth respondents could not rely on the practice they are doing in their offices, when the law clearly states that the environment impact assessment certificate is a pre-requisite to the registration of the claim.

34. Having said that, the appellant's certificate of registration over the mining claim was null and void in the absence of the environment impact assessment certificate. The appellant cannot rely on s 58 of the Mines and Minerals Act, as it is inapplicable in this matter. There is virtually no mining claim to talk about. In addition, the court *a quo* had the discretion to deal with the matter as it lies squarely in the purview of its jurisdiction. The appellant cannot raise the issue of mootness on appeal, when this issue was never dealt with by the court *a quo.* This Court is not a court of first instance.

35. It is for the above reasons that we dismissed the appeal in its entirety.

UCHENA JA : I agree

MAKONI JA : I agree

Chiminya & Associates, appellant's legal practitioners.

Wintertons, 1st respondent's legal practitioners.

Civil Division-Attorney General's Office, 2nd to 4th respondent's legal practitioners.